

5.	Coronado vs. Sub-zero Excavating, Incorporated 24-01443383	1. Demurrer to Complaint (x2) 2. Case Management Conference <u>Motion No. 1</u> The City of Cypress' Demurrer to the Complaint is SUSTAINED. The City's Request for Judicial Notice is GRANTED as to Exhibit A and DENIED as to Exhibit B. A complaint must contain "a statement of the facts constituting the cause of action, in ordinary and concise language." (Code Civ. Proc., § 425.10.) A plaintiff must plead such facts as are necessary "to acquaint a defendant with the nature, source and extent of his claims." (<i>Doe v. City of Los Angeles</i> (2007) 42 Cal. 4th 531, 550.) Moreover, "claims against public entities [must] be specifically pleaded." (<i>Brenner v. City of El Cajon</i> (2003) 113 Cal.App.4th 434, 439.) First Cause of Action - Negligence A California public entity is not liable for a tortious injury caused by an act or omission of a public entity or public employee or any other person, except as otherwise provided by statute. (Gov. Code, § 815(a).) Here, the Complaint does not identify any statutory authority that supports a claim for negligence against the City. The Complaint merely states "Defendants named failed to turn the power lines off at the site. Defendants failed to provide reasonable warning of the 'Dangerous Condition'". There are no facts indicating why the City is liable, or that the incident even occurred on City property. Accordingly, the demurrer to the first cause of action is SUSTAINED. Second Cause of Action – Premises Liability A public entity is liable "for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and that either: (a) A negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or (b) The public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken
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measures to protect against the dangerous condition.” (Cal. Gov. Code, § 835.)

As with the first cause of action, the Complaint fails to state facts indicating why the City is liable, or that the incident occurred on City property. The Complaint merely states “[t]he lack of diligence by the defendants in not providing notice, locating underground utility, marking the premises, using locating devices, digging, turning off power lines and land surveying caused Plaintiff’s injuries.” Such facts do not sufficiently address the elements of Section 835.

Accordingly, the demurrer to the second cause of action is SUSTAINED.

Plaintiff’s failure to oppose the demurrer may be treated as an implied concession to the merits of the same. (*Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20.) Additionally, the court may construe the absence of a memorandum as waiver of all grounds not supported. (CRC 3.1113(a).) Based upon these grounds, the court sustains the unopposed demurrer. Although the demurrer is unopposed, the court finds that Plaintiff should be given an opportunity to cure the defects in the operative complaint that were raised by the City in the demurrer.

Plaintiff has 30 days leave to amend.

Motion No. 2

The Orange County Fire Authority’s Demurrer to the Complaint is SUSTAINED.

First Cause of Action - Negligence

A California public entity is not liable for a tortious injury caused by an act or omission of a public entity or public employee or any other person, except as otherwise provided by statute. (Gov. Code, § 815(a).)

Here, the Complaint does not identify any statutory authority that supports a claim for negligence against the OCFA. The Complaint merely states “Defendants named failed to turn the power lines off at the site. Defendants failed to provide reasonable warning of the ‘Dangerous Condition’”. There are no facts indicating exactly why the OCFA is liable to Plaintiff.

Accordingly, the demurrer to the first cause of action is SUSTAINED.

Second Cause of Action – Premises Liability

a. Failure to Warn

“Count Two” of the Premises Liability claim for “Willful Failure to Warn” includes no allegations other than the form’s boilerplate allegation that the defendant owners willfully or maliciously failed to guard or warn against a dangerous condition.” This is insufficient to state a claim against OCFA as there are no factual allegations that OCFA owned the property or were aware of a dangerous condition on the property.

b. Dangerous Condition of Public Property

A public entity is liable “for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and that either: (a) A negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or (b) The public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition.” (Cal. Gov. Code, § 835.)

Again, the Complaint fails to state any facts demonstrating that the property was in a dangerous condition at the time of the injury or that OCFA had any notice of a dangerous condition.

Moreover, under the Government Claims Act, a complaint must allege that a timely claim was presented to the public entity and that the claim was either rejected or not acted upon within the statutory period. (Gov. Code § 900 et seq.) Here, there are no allegations that Plaintiff complied with the Government Claims Act.

Accordingly, the demurrer to the second cause of action is SUSTAINED in its entirety.

Plaintiff’s failure to oppose the demurrer may be treated as an implied concession to the merits of the same. (*Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20.) Additionally, the court may construe the absence of a memorandum as waiver of all grounds not supported.

		(CRC 3.1113(a).) Based upon these grounds, the court sustains the unopposed demurrer. Although the demurrer is unopposed, the court finds that Plaintiff should be given an opportunity to cure the defects in the operative complaint that were raised by the OCFA in the demurrer. Plaintiff has 30 days leave to amend. The Case Management Conference is CONTINUED to August 21, 2026, at 9:30 a.m. in Department C12. Each Moving Defendant to give notice of these rulings.
6.	Seacoast Capital Partners IV L.P. vs. Martin 25-01473117	1. Demurrer to Amended Cross-Complaint 2. Case Management Conference Cross-Defendant Seacoast Capital Partners IV, LP's demurrer to Cross-Complainants Michael Martin and Philip Nabal's Second Amended Complaint is OVERRULED as to the First Cause of Action and SUSTAINED as to the Second and Third Causes of Action. Cross-Complainants have 30 days to file a Third Amended Cross-Complaint. <u>COA 1: Intentional Interference with Contractual Relations</u> The elements of a cause of action for intentional interference with contractual relations are: (1) a valid contract between the complainant and a third party; (2) the defendant's knowledge of the contract; (3) Intentional conduct on the part of the defendant that was intended to or would necessarily result in a breach or disruption of the contractual relationship; (4) an actual breach or disruption of the contractual relationship; and (5) resulting damages. (See <i>Quelimane Co. v. Stewart Title Guaranty Co.</i> (1998) 19 Cal.4th 26, 55.) The SAXC adequately alleges these elements. Cross-Complainants allege they had a valid contract with DI Overnite, LLC involving a promissory note for \$136,682.95. (SAXC ¶5.) Cross-Complainants allege Cross-Defendants were aware of this relationship as shown by their alleged forgery of a subordination agreement that was intended to subordinate this debt to other debts DI Overnite, LLC owed to Cross-Defendants. (SAXC ¶¶7-8.) The SAXC alleges that Cross-Defendants engaged in conduct that would necessarily result in a disruption of the contract between Cross-Complainant DI Overnite,